Tentative Rulings for August 12, 2026
Department 2

To request oral argument, you must notify Judicial Secretary Crystal Marias at (760) 904-5722 and inform all other counsel no later than 4:30 p.m.

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at Riverside Superior Court-Tentative Rulings.. If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 2 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at Riverside Superior Court-Remote Appearances

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252, 1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: 161 143 8184

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2403574	SILVAS vs BMW OF NORTH AMERICA, LLC	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

Summary of Ruling:

The Court awards attorney fees in the amount of $37,015 in fees. The Court also award costs and expenses totaling $2,770.

The court previously ruled on separate attorney fee motions in different cases [CVRI 2500212, CVRI 2407127] with Plaintiff's counsel, as argued on July 15, 2026. In light of those prior rulings, the Court seeks to be consistent while on the other hand recognizing that the circumstances of each case are unique and relevant to an award of reasonable attorney fees.

Facts/Procedural Summary

This is a lemon law case. Plaintiffs filed the instant lawsuit on June 20, 2024. Plaintiffs alleged various defects and nonconformities to warranty for their 2021 BMW M340i. The parties exchanged discovery and Plaintiff David Silvas was deposed. BMW's person most knowledgeable was also deposed. On August 15, 2025, BMW made a Section 998 offer in the amount of $20,000 with attorney fees by motion. Plaintiffs accepted the offer.

Plaintiffs now bring the instant motion for attorney fees. Plaintiffs seek a total of $42,561.50 plus costs and expenses totaling $2,770. The motion is supported by the declaration of Jorge L. Acosta, attorney for Plaintiffs. Exhibit A to Acosta's declaration is a copy of the firm's billing records in this matter. Four separate attorneys worked on the instant matter, as well as law clerks and paralegals.

Defendant opposes the motion. Defendant argues this was a straightforward, not heavily-litigated case that does not warrant $45,331.50 in fees and costs. Defendant argues the fees requested should be reduced to no more than $15,000. Defendants challenge Plaintiffs' attorney's hourly rates as excessive. Defendant also challenges various billing entries and argues counsel charged excessive and improper amounts for various work performed.

Initially, Exhibit A to the Acosta declaration only included billing entries for Sergio Aivazov. Counsel realized the error and provided the full exhibit with the Reply. The court continued the hearing to allow Defendant time to review the Exhibit and file a supplemental Opposition.

Analysis

I. Recovering Attorney Fees

Under Civ. Code §1794(d), "[i]f the buyer prevails in an action under [the Song-Beverly Act], the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." The matter of reasonableness of a party's attorney fees is within the sound discretion of the trial court. (*Bruckman v. Parliament Escrow Co*. (1989) 190 Cal.App.3d 1051, 1062.) The court must determine whether the amount requested is reasonable based on the circumstances of the case, including factors such as complexity of the case, procedural demands, skill exhibited and results achieved, and the court may reduce the amount if it is determined to be unreasonable. (*Goglin v. BMW of North America* (2016) 4 Cal. App. 5th 463, 470.)

The Lodestar method is used to calculate fees under section 1794(d). (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal. App. 4th 967, 997.) The lodestar amount is based on the time spent and reasonable hourly rate, and may be augmented or diminished based on several factors, including: "(1) the novelty and difficulty of the questions involved and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; and (3) the contingent nature of the fee award, based on the uncertainty of prevailing on the merits and of establishing eligibility for the award." (Id at 998.) The purpose of a fee enhancement is primarily to compensate the attorney for the prevailing party at a rate reflecting the risk of nonpayment in contingency cases as a class. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1138.)

The prevailing buyer has the burden of showing the fees incurred were allowable and reasonably necessary to the conduct of the litigation. (*Goglin, supra*, 4 Cal. App. 5th at 470.) Fee motions should be based on detailed time record. (*Crespin v. Shewry* (2004) 125 Cal.App.4th 259, 271.) Once the prevailing party has made a prima facie showing that its fee request was fair and reasonable, the burden of proof is on the opposing party to show by admissible evidence that the fees requested were unreasonable, either by the number of hours or the hourly rate or both. (*Maughan v. Google Technology* (2006) 143 Cal. App. 4th 1242, 1261.)

II. Reasonableness of Fees

Defendant does not dispute that Plaintiffs are entitled to recoup attorneys' fees and costs, only that the amounts sought are unreasonable. The matter of reasonableness of a party's attorney's fees is within the sound discretion of the trial judge. (*Bruckman v. Parliament Escrow Co*. (1989) 190 Cal.App.3d 1051, 1062.) Courts generally consider several factors in determining the reasonableness of a party's attorney's fees. These include "the nature of the litigation, the difficulty of the litigation, the attention given to the issues, the success of the attorney's efforts, and time consumed. [Citation omitted.]" (*PLCM Group, Inc. v. Drexler* (1999) 72 Cal.App.4th 693, 708.)

Although a fee request ordinarily should be documented in great detail, the court is entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel's declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.) Specifically, in exercising its discretion, the Court may consider all facts and the entire procedural history of the case in setting the amount of a reasonable attorney's fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394.)

Lodestar is the objective starting point to determine if attorney's fees are reasonable. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242.) Lodestar is calculated by assessing the reasonable rate for comparable services in the local community, multiplied by the reasonable number of hours spent on the case. (*Id.*) Lodestar requires the court to determine what a reasonable rate and number of hours expended is. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1320.)

Plaintiffs' counsel incurred $42,561.50 in fees from attorneys Courtney Perdue ($695/hour), Christopher Urner ($525/hour), Jorge L. Acosta ($450/hour for partner rate; $350/hour for associate rate), and Sergio Aivazov ($300/hour). Jorge L. Acosta billed 30.4 hours (9 hours at associate rate and 21.4 at partner rate). Christopher Urner billed 21.8 hours. Courtney perdue billed 10.7 hours. Sergo Aivazov billed 20 hours. Law clerks billed another 6.6 hours and a paralegal billed 13 hours.

Defendant first challenges the hourly rates for counsel. Defendant argues the hourly rates are excessively high and specifically challenges the $695/hour rate for Courtney Perdue. Defendant's argument has merit. The vast majority of the hours billed in this matter were billed at a rate of $450/hour or higher. This is high for lemon law claims in Riverside County. As a result, the Court sets attorney fee rates as set forth in the chart below, finding these rates to be reasonable for Riverside County, and considering prior rulings with the particular circumstances of this case.

Attorney	**Original Rate**	**New Rate**	**Hours**	**Total**
Courtney Perdue	$695/hour	$500/hour	10.7	$5,350
Christopher Urner	$525/hour	$475/hour	21.8	$10,355
Jorge L. Acosta (partner rate)	$450/hour	$400/hour	21.4	$8,560
Jorge L. Acosta (associate rate)	$350/hour		9	$3,150
Sergo Aivazov	$300/hour		20	$6,000
Law Clerks	$250/hour		6.6	$1,650
Paralegal	$250/hour	$150/hour	13	$1,950
			Total	**$37,015**

Defendant then challenges seven specific billing entries arguing that, individually, the entries are not concerning but when taken as a whole they indicate Plaintiffs' counsel's attempt to inflate attorney fees through a variety of methods. Defendant challenges the following entries:

- File Review in June 2024: Counsel billed 1.7 hours, 1.1 hours, and 1.4 hours for file review and similar tasks on June 10, 16, and 20. Defendant argues these hours should be reduced since counsel completed nearly identical tasks on each date.
- June 30, 2024: Counsel billed 2.3 hours for researching the NHTSA database. Defendant argues this is facially excessive.
- Drafting Discovery: Defendant challenges the 1.2 hours billed to draft standard discovery arguing Plaintiff's counsel relied on templates and overbilled the time spent.
- Notice of Deposition: Defendant challenges 1.5 hours billed to prepare multiple notices of deposition.
- Analysis of Objections: Defendant challenges Plaintiff's counsel billing 0.3 hours to review discovery objections every time they were served.
- Deposition Preparation: Defendant challenges the 2.9 hours billed to prepare Plaintiffs for deposition when the deposition never occurred. However, the deposition was noticed so it is not unreasonable for counsel to prepare for the deposition.
- Motions in Limine: Defendant challenges spending 4.2 hours on preparing motions in limine that did not serve any legitimate purpose.

The significant reduction in counsel's hourly rates has substantially reduced the lodestar fee amount. It is also not necessary to nitpick each of Plaintiff's counsel's billing entries. Additionally, even Defendant notes "[i]ndividually, the entries above do not raise substantial concern." (Supp. Opp. 5:19.) Defendant is correct as the above entries all appear to be facially appropriate. Given the court's adjustment of the overly inflated hourly rates, it is also not necessary to reduce the hours billed on these individual entries, as well.

Defendant did not challenge the claimed costs and expenses of $2,770. Therefore, it is appropriate to award this amount, as well.
The Court awards attorney fees in the amount of $37,015 in fees. The Court also award costs and expenses totaling $2,770. Plaintiff shall prepare a proposed order.

2.

CASE #	**CASE NAME**	**HEARING NAME**
CVRI2506695	SANCHEZ vs SANCHEZ	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling:

Summary of Ruling: The Court will continue the hearing to allow Defendant an opportunity to satisfy her statutory obligation to meet and confer in person or by telephone in accordance with C.C.P. §§ 430.41(a). The Defendant is ordered to (10 days before the continued hearing date) do one of the following: (1) vacate the hearing on the demurrer and file an answer to the FAC; (2) file with the court a declaration and stipulation indicating that the parties have agreed that Plaintiffs will file an amended complaint before the date set forth above; or (3) file with the court a declaration stating the means by which the parties met and conferred and identifying the specific objections in the demurrer that the parties were unable to resolve.

<u>Factual / Procedural Context</u>

This action involves a family dispute over property. On December 3, 2025, Plaintiffs Evelio Chavez Sanchez ("Evelio")[1] and Alma Sanchez ("Alma") (together "Plaintiffs") filed a Complaint against Defendant Terry L. Sanchez ("Defendant" or "Terry") for: (1) fraud; (2) quiet title; and (3) declaratory relief. Terry filed a demurrer, and in response, on March 16, 2026, Plaintiffs filed a First Amended Complaint ("FAC") against Terry asserting the same causes of action. In the FAC, Plaintiffs allege that on April 30, 2001, Evelio purchased and took title to the property located at 940-944 Beverly Road, Corona, California (the "Property"). (FAC at ¶ 6.) At the time of purchase, Evelio entered into a verbal agreement with his brother Francisco Sanchez ("Francisco") to be partners in the Property. (FAC at ¶ 7.) Evelio and Francisco both contributed funds to the down payment on the Property, and Evelio obtained a mortgage in his name only. (FAC at ¶¶ 7, 8.) Plaintiffs have resided in the Property since it was purchased, and the mortgage has remained in Evelio's name from 2001 to September 2025. (FAC at ¶¶ 7, 8.) At the time the Property was purchased, Francisco was married to Terry, who he separated from in 2009. (FAC at ¶ 9.) On February 1, 2019, Plaintiffs signed a quitclaim deed for the Property at Francisco's behest. (FAC at ¶ 10.) Francisco led Plaintiffs to believe the legal effect of the quitclaim deed was to add Francisco a co-owner to protect his interest during dissolution proceedings, and they relied on his representations in signing the deed. (FAC at ¶¶ 11.) He paid no financial consideration to Plaintiffs, and did not provide them with a copy of the quitclaim deed. (FAC at ¶ 10.) Francisco never recorded the quitclaim deed, thereby preventing Plaintiffs from discovering they had been defrauded into relinquishing their ownership rights in the Property. (FAC at ¶ 13.) Francisco listed the Property as community property in his petition for dissolution of his marriage to Terry. (FAC at ¶ 12.) Evelio was added as a necessary party to the dissolution proceedings in January 2021, because he still held title to the Property since the deed had not been recorded. (FAC at ¶ 14.) On November 7, 2021, Francisco passed away, and the petition for dissolution of marriage was never finalized. (FAC at ¶ 16.) On August 1, 2022, Terry recorded the quitclaim deed intending to deprive Plaintiffs of their interest in the Property, despite previously acknowledging Evelio's interest by allowing him to join in the dissolution proceeding. (FAC at ¶¶ 17-18.) On April 16, 2024, Terry filed a Spousal Property Petition to confirm her half interest in the Property, and to transfer Francisco's interest to her as the surviving spouse, and on May 20, 2024, the Court granted her petition, making her sole owner of the Property. (FAC at ¶ 19.) She was complicit in the scheme initiated by Francisco. (FAC at ¶ 25.) Plaintiffs' harm

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[1] Because multiple people share a last name, they are referred to "by their first names to avoid any confusion. No disrespect is intended." (*Rouland v. Pacific Specialty Ins. Co.* (2013) 220 Cal. App. 4th 280, 283.)

occurred when the Property was transferred to Terry on May 20, 2024, and Plaintiffs only became aware of the fraudulent scheme in December 2024. (FAC at ¶¶ 22, 34-35.) On September 30, 2025, Terry served Plaintiffs with an eviction notice. (FAC at ¶ 20.)

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Terry demurs to the fraud cause of action on the grounds that: (1) it is barred by the statute of limitations and there are no facts alleged supporting delayed discovery; and (2) it is not sufficiently pled with specificity.

In opposition, Plaintiffs argue that the fraud claim is not barred by the statute of limitations, and it is sufficiently stated.

Analysis

I. Meet and Confer

Pursuant to C.C.P. § 430.41(a), before filing a demurrer, the moving party must meet and confer in good faith with the plaintiff via phone or in person. Here, Defendant's counsel states that he sent one letter to Plaintiff's counsel regarding the demurrer. (See, Decl. of Andrew Knew at ¶ 2, Ex. A.) There is no evidence that defense counsel called Plaintiffs' counsel to discuss the merits of the demurrer, or even followed up on the email sent. C.C.P. § 430.41(a) very clearly requires that parties meet and confer by telephone or in person, regardless of the prospects of an informal resolution, and based on the evidence presented, Defendant did not do this. Accordingly, the hearing on the demurrer should be continued, and Defendant should be ordered to meet and confer with Plaintiffs by telephone, video conference or in person for the purpose of determining whether an agreement can be reached that would resolve the objections raised in the demurrer. As part of the meet and confer process, Defendant shall identify with legal support the basis of the alleged deficiencies in the FAC. Plaintiffs shall provide legal support for their position that the pleading is legally sufficient or, in the alternative, how the FAC may be amended to cure any legal insufficiency. After meeting and conferring, Defendant shall, 10 days before the continued hearing date set forth above, do one of the following:

(1) vacate the hearing on the demurrer and file an answer to the FAC;
(2) file with the court a declaration and stipulation indicating that the parties have agreed that Plaintiffs will file an amended complaint before the date set forth above; or
(3) file with the court a declaration stating the means by which the parties met and conferred and identifying the specific objections in the demurrer that the parties were unable to resolve.

The court will not accept further briefing.